

SERVICE AGREEMENT CONTRACT

Contract Reference: ACP-2024-0042

ARTICLE 1 — PARTIES

Service Provider: ACP Consulting Group SAS, a simplified joint-stock company registered under French law, with its registered office at 15 Rue de la Paix, 75001 Paris, France, registered under SIRET number 123 456 789 00012, represented by Mr. Jean-Pierre Martin, Chief Executive Officer, hereinafter referred to as 'the Provider'.

Client: TechNova Industries SA, a public limited company registered under French law, with its registered office at 42 Avenue des Champs-Élysées, 75008 Paris, France, registered under SIRET number 987 654 321 00034, represented by Ms. Sophie Dubois, Chief Financial Officer, hereinafter referred to as 'the Client'.

ARTICLE 2 — PURPOSE OF THE CONTRACT

This contract governs the provision of IT consulting and digital transformation services by the Provider to the Client. The scope of services includes the design, development, and deployment of an enterprise resource planning system (ERP), along with associated training, maintenance, and technical support services as described in Annex A of this agreement.

ARTICLE 3 — DURATION

Start Date: January 15, 2024

End Date: January 14, 2026

This contract is concluded for a fixed term of twenty-four (24) months from the start date. It may be renewed by mutual written agreement of both parties at least sixty (60) days before the expiration date.

ARTICLE 4 — FINANCIAL CONDITIONS

Total Contract Value: EUR 480,000 (Four hundred and eighty thousand euros) excluding VAT.

Payment Schedule:

- Phase 1 (Design and Analysis): EUR 96,000 — payable upon contract signature
- Phase 2 (Development): EUR 192,000 — payable upon delivery of development milestone
- Phase 3 (Deployment and Training): EUR 120,000 — payable upon system go-live
- Phase 4 (Maintenance): EUR 72,000 — payable in monthly installments of EUR 3,000

All invoices are payable within thirty (30) days of receipt. Late payments will incur interest at a rate of 3% per month.

ARTICLE 5 — OBLIGATIONS OF THE PROVIDER

The Provider undertakes to: (i) deliver the services described in Annex A in accordance with the agreed timeline; (ii) assign qualified personnel with the necessary expertise; (iii) maintain strict confidentiality regarding all Client data and information; (iv) provide monthly progress reports; (v) respond to critical support requests within four (4) business hours.

ARTICLE 6 — OBLIGATIONS OF THE CLIENT

The Client undertakes to: (i) provide the Provider with timely access to all necessary systems, data, and personnel; (ii) designate a project coordinator as the primary point of contact; (iii) make payments according to the schedule defined in Article 4; (iv) review and approve deliverables within ten (10) business days of submission.

ARTICLE 7 — INTELLECTUAL PROPERTY

All deliverables, source code, documentation, and work products created specifically for the Client under this contract shall become the exclusive property of the Client upon full payment of the corresponding invoice. Pre-existing intellectual property of the Provider remains the property of the Provider.

ARTICLE 8 — CONFIDENTIALITY

Both parties agree to maintain strict confidentiality of all proprietary information, trade secrets, and business data exchanged during the performance of this contract. This obligation shall survive the termination of this contract for a period of five (5) years.

ARTICLE 9 — TERMINATION CLAUSE

Either party may terminate this contract with ninety (90) days written notice. In case of material breach not remedied within thirty (30) days of written notice, the non-breaching party may terminate immediately. Upon termination, the Client shall pay for all services rendered up to the termination date.

ARTICLE 10 — LIABILITY AND PENALTIES

The Provider's total liability under this contract shall not exceed the total amount paid by the Client in the twelve (12) months preceding the claim. Penalties for delays exceeding thirty (30) days shall be 0.5% of the phase value per week of delay, capped at 10% of the total contract value.

ARTICLE 11 — GOVERNING LAW AND DISPUTE RESOLUTION

This contract shall be governed by French law. Any disputes arising from or in connection with this contract shall first be subject to mediation. If mediation fails within sixty (60) days, disputes shall be submitted to the exclusive jurisdiction of the Commercial Court of Paris.

Signed in Paris, on December 10, 2023

For ACP Consulting Group SAS For TechNova Industries SA

Jean-Pierre Martin, CEO Sophie Dubois, CFO